

# ENTERPRISE SAAS TERMS OF SERVICE

## PREAMBLE

These Enterprise SaaS Terms of Service ('Terms') govern access to and use of the CloudScale Analytics Platform provided by CloudScale Systems Inc. ('Provider') to Enterprise Subscribers ('Customer').

## SECTION 1. SERVICE LEVEL AGREEMENT (SLA)

Provider guarantees a monthly Service Uptime Percentage of at least 99.9% for the CloudScale Platform, excluding scheduled maintenance windows announced at least 48 hours in advance.

If Uptime falls below 99.9% in a calendar month, Customer is eligible to receive a service credit equal to 10% of monthly subscription fees upon written request submitted within 30 days.

## SECTION 2. LIMITATION OF LIABILITY

TO THE MAXIMUM EXTENT PERMITTED BY LAW, IN NO EVENT SHALL PROVIDER BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES.

PROVIDER'S AGGREGATE CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL BE STRICTLY LIMITED TO THE TOTAL FEES PAID BY CUSTOMER TO PROVIDER IN THE TWELVE (12) MONTH PERIOD PRECEDING THE CLAIM.

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## SECTION 3. INTELLECTUAL PROPERTY AND CUSTOMER DATA

Customer retains all ownership, rights, and title to all data, code, files, and legal documents uploaded to the Platform ('Customer Data'). Provider obtains no intellectual property rights in Customer Data except the limited license necessary to process requests.

Provider retains exclusive rights and title to the Platform, AI algorithm architectures, system code, and all improvements thereto.

## SECTION 4. MANDATORY ARBITRATION AND GOVERNING LAW

Any dispute, controversy, or claim arising under or relating to these Terms shall be settled by binding arbitration administered by the American Arbitration Association (AAA) under its Commercial Rules in Delaware. Judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction.